

because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(*Ibid.*) This is not the court requiring Whitley's to change a valid discovery response, as Whitley's claims, but rather complying with discovery when documents Whitley's previously verified and confirmed existed in its possession, custody, and control and would be produced are not actually in its possession, custody, or control.

Whitley's argues that it is too late to compel a further response to the RFPs because the responses were provided in 2024. (Opposition, pp. 3:19-21, 5:1-21.) However, C.C.P. § 2031.310(c) provides that notice of any motion to compel a further response must be "given within 45 days of the service of the verified response, or any supplemental verified response." As Whitley's points out, it served supplemental verified responses to the RFPs on April 24, 2026, and again on May 6, 2026. (Decl. of Marty E. Zemming ["Zemming Decl."], Exs. 4 and 5.) This motion was filed on June 18, 2026, 43 days after the May 6, 2026 supplemental responses were provided. Thus, the motion is timely.

Motion to Compel Production of Documents; Alternatively to Compel Further Verified Responses GRANTED.

Plaintiff to provide verified, code-compliant responses to RFPs 29-37, 42 and 43, without objection, within 5 days.

Sanctions awarded in the amount of \$1,010 (\$475/hour 2 hrs + \$60 filing fee)

The court shall sign the proposed order submitted by Defendant/Cross-Complainant Bottomley.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2400400	BUXBAUM VS MCFARLAND	MOTION FOR ORDER REQUIRING DEFENDANTS TO PAY EXPENSES OF PROOF

Tentative Ruling: No tentative ruling. Motion is continued to 8.25.26 for the reasons listed below:

If the party responding to request for admission fails to admit the truth of the matter requested, and the requesting party thereafter proves the truth of that matter, the requesting party may move for an order requiring the responding party to pay the costs and fees incurred in proving that matter. (Code Civ. Proc., § 2033.420(a).) On the requesting party's motion, the court is required to ("shall") make this costs and expenses award, unless the responding party prove any of the excuses further enumerated in this section. Costs and expenses cannot be awarded under section 2033.420 if:

- (1) An objection to the request was sustained or a response to it was waived under Section 2033.290.

- (2) The admission sought was of no substantial importance.
- (3) The party failing to make the admission had reasonable ground to believe that party would prevail on the matter.
- (4) There was other good reason for the failure to admit. (Code Civ. Proc., § 2033.420(b)(1)-(4).)

Party seeking to benefit from exceptions listed in statute governing payment of costs of proof for denying a request for admission bears burden to establish the exceptions. (*Spahn v. Richards* (2021) 72 Cal.App.5th 208.)

“[A]n award of costs of proof under section 2033.420 is not a ‘discovery sanction’ or a ‘penalty’ for engaging in ‘misuses of the discovery process’ for the misuse of the discovery process.” (*City of Glendale v. Marcus Cable Assoc., LLC* (2015) 235 Cal.App.4th 344, 359.) “Instead, it is designed to reimburse reasonable expenses incurred by a party in proving the truth of a requested admission where the admission sought was ‘of substantial importance’ [citations] such that trial would have been expedited or shortened if the request had been admitted....” (*Orange County Water Dist. v. The Arnold Eng. Co.* (2018) 31 Cal.App.5th 96, 115, internal quotations omitted.)

In this action, Plaintiff sought disgorgement of money paid to McFarland Defendants for performing contractor work which required a valid contractor’s license in violation of the applicable provisions of the Contractor’s State Licensing Law (“CSLL”, Bus. & Prof. Code, § 7010 et seq.). The strict forfeiture under the disgorgement provision of section 7031, subdivision (b), allows the hirer to bring a disgorgement claim “to recover all compensation paid to the unlicensed contractor for performance of any act or contract.” (Bus. & Prof. Code, § 7031(b), *italics added*.) Here, it is undisputed that Plaintiff’s RFA directly related to a controverted issue presented at trial. That is, whether McFarland Defendants performed work at the property for which a valid contractor’s license was required but did not in fact hold the required licenses. Undeniably, Defendants answered the RFAs with denials. Plaintiff demonstrates in the motion that he presented substantive evidence at trial, including the expert testimonies from former CSLB investigator, Robert Lucas, and has prevailed on this issue. Therefore, an order requiring Defendants to pay the cost of proof is mandatory.

McFarland Defendants have not made a sufficient showing that they reasonably believed they would prevail at trial on such issue. They argue that they reasonably believed that their relationship with Plaintiff, the nature of the services performed, and the degree of Plaintiff’s involvement in the project supported that characterization. However, Defendants’ firmly held beliefs were not reasonable. Other than the contention that they held subject beliefs that they were acting merely as a consultant, they present no evidence to support the claim that they reasonably entertained good faith belief that they would prevail on the issue at trial, which requires more than a hope or a roll of the dice.” (*Grace v. Mansourian* (2015) 240 Cal.App.4th 523, 532.) “[C]ourts are more willing to credit a party’s reasonable belief that it would prevail based on expert opinion evidence,” but McFarland Defendants point to no such evidence of any efforts made to substantiate their belief with credible source. (*Orange County Water Dist. v. The Arnold Engineering Co.* (2018) 31 Cal.App.5th 96, 118, 120-121.)

However, Plaintiff has not presented competent evidence to demonstrate he is entitled to the amount he claims were incurred in proving the matters McFarland refused to admit. Plaintiff is seeking a total of \$152,815 representing 235.1 hours in attorney’s fees billed by his attorney at the hourly rate of \$650. Plaintiff is seeking an additional

\$12,545 representing an additional 19.3 hours spent on drafting the instant motion as well as for anticipated fees for preparation and appearance on this matter. In support of the demanded fee award, Plaintiff submits the declaration of his counsel, Kenneth G. Ruttenberg, which contains no itemized billing records. McFarland Defendants oppose the reasonableness of the number of hours billed by Plaintiff's counsel as excessive and contends that Plaintiff's demand is unsubstantiated as to the time allocated towards proving the matters as to each Defendant. It is true that "[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records." (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559.) Nevertheless, as the court in *Martino* noted, " 'In many cases the trial court will be aware of the nature and extent of the attorney's services from its observation of the trial proceedings and the pretrial and discovery proceedings reflected in the file....' " but "in the absence of such crucial information as the number of hours worked, billing rates, types of issues dealt with and appearances made on the client's behalf, the trial court is placed in the position of simply guessing at the actual value of the attorney's services" and such "practice is unacceptable and cannot be the basis for an award of fees." (*Ibid.*)

Therefore, even if Plaintiff has shown that he is entitled to award of cost of proof, he has failed to present competent evidence in support of the reasonableness in the amount requested which is being challenged by McFarland Defendants. The reasonableness in the lodestar figure is within the sound discretion of the Court. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35.) There are a number of factors that a judge may consider in determining that a reduction in fees is warranted. (*Ibid.*) "In evaluating whether the attorney fee request is reasonable, the trial court should consider ' " 'whether the case was overstaffed, how much time the attorneys spent on particular claims, and whether the hours were reasonably expended.' " ' [Citation.]" (*Id.* at 38.) " 'A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.' " [Citation.]" (*Ibid.*) Evidence is insufficient for the court to determine whether any of these factors are present in this matter. Therefore, a supplemental declaration along with the appropriate time record shall be provided in order for the court to determine the reasonableness of the fees requested.

Motion for Order to Pay Expenses of Proof continued to 8.25.26.

Plaintiff to submit updated declaration by 8.03.26.

Defendant to submit an opposition by 8.12.26.

Plaintiff to submit a reply by 8.18.26.